

SERVICE 2 OUTPUT — LEGAL DOCUMENT SUMMARY

AI-Driven Multilingual Legal Document Simplifier

Source Document: legal doc 3.pdf | Document Length: 8 pages | Service: Legal Document Summarization

1. TL;DR

This document is an order of the Principal District Munsif Court, Ulundurpet, concerning an application filed by Booma Devi and other petitioners seeking removal of an attachment placed before judgment over certain properties.

The petitioners stated that the properties had been sold by the second respondent to Kannan in 2009, that Kannan subsequently died leaving the petitioners as his legal heirs, and that the attachment was made in 2012 even though the second respondent no longer had rights over the properties.

After considering the documents produced by the petitioners, the court found that the second respondent had sold the properties before the attachment was made. The court also noted that Items 1 to 5 had already been removed from attachment in 2024. The court therefore allowed the application and ordered removal of the attachment over Items 6 and 7.

The Registry was directed to communicate the removal to the concerned Sub-Registrar office so that the necessary encumbrance entries could be made. No cost was ordered.

2. CASE / DOCUMENT OVERVIEW

Court	Principal District Munsif, Ulundurpet
Presiding Officer	Tmt. A. Elakiya B.C.A., LL.B (Hons)., LL.M., Principal District Munsif
Application	I.A. No. 3 / 2024
Related Application	I.A. No. 419 / 2012
Original Suit	O.S. No. 116 / 2012
Order Date	25 March 2026
Final Hearing Mentioned	21 January 2026
Petitioners	Booma Devi, Arun Kumar, Anitha, Minor Arjunan
Respondent / Plaintiff	Ramalingam
Other Respondent / Defendant	Krishnanveni
Nature of Proceeding	Application under Order XXXVIII Rule 8 CPC seeking removal of attachment
Final Result	Application allowed
Costs	No cost

3. BACKGROUND / FACTS

According to the petitioners' averments recorded in the order:

1. The properties originally belonged to the second respondent, Krishnanveni.
 2. The petitioners stated that the second respondent sold the properties to Kannan in 2009.
 3. Kannan thereafter possessed and enjoyed the properties.
 4. Kannan died intestate.
 5. The petitioners stated that they were his only legal heirs.
 6. The petitioners stated that patta for the properties was subsequently transferred into their names.
 7. The first respondent had filed O.S. No. 116/2012 against the second respondent.
 8. In that suit, I.A. No. 419/2012 was filed seeking attachment before judgment of the properties.
 9. The attachment was made and registered as Document No. 8/2012 in 2012.
 10. The petitioners stated that the second respondent had already sold the properties before the attachment was made.
 11. The petitioners stated that they discovered the attachment while checking the encumbrance record on 4 April 2024 when seeking a bank loan.
 12. They therefore filed the present application seeking removal of the attachment.

4. ISSUE / POINT FOR DETERMINATION

The court identified the following point for determination:
Whether this application deserves to be allowed as prayed for?

5. MATERIALS CONSIDERED BY THE COURT

The petitioners marked Ex.P1 to Ex.P9. The order states that there was no oral evidence from either side and that the respondents were set ex parte.

Exhibit	Date	Description
Ex.P1	26.03.2009	Sale Deed for the petition-mentioned properties in the name of Kannan, Document No. 737/2009
Ex.P2	06.04.2024	Patta for Items 1 to 5 in the names of the petitioners, Patta No. 4219
Ex.P3	09.04.2024	Patta for Item 6 in the names of the petitioners, Patta No. 2154
Ex.P4	09.04.2024	Patta for Item 7 in the names of the petitioners, Patta No. 4219
Ex.P5	22.08.2012	Attachment of the petition-mentioned properties, Document No. 8/2012
Ex.P6	09.04.2024	Encumbrance Certificate for 01.01.2007 to 08.04.2024
Ex.P7	28.06.2019	Death Certificate of Kannan
Ex.P8	13.11.2019	Legal Heir Certificate of Kannan
Ex.P9	20.08.2025	Encumbrance Certificate for 01.01.2007 to 19.08.2025

6. COURT'S DISCUSSION — SUMMARY

The court considered the documents produced by the petitioners.

The court recorded that Ex.P1 established the sale of the petition-mentioned properties by the second respondent in favour of Kannan before the 2012 attachment.

The court also considered Ex.P7 and Ex.P8 as establishing Kannan's death and the petitioners' status as his legal heirs. Ex.P2 to Ex.P4 were considered in relation to possession/patta standing in the petitioners' names.

Ex.P5 showed the attachment made pursuant to the order in I.A. No. 419/2012 in O.S. No. 116/2012.

The court reasoned that the sale had taken place before the properties were attached in 2012. Therefore, according to the court's discussion, the second respondent did not have rights over the properties when the attachment was made.

The court further considered Ex.P9 and found that Items 1 to 5 had already been removed from attachment on 21 September 2024 through registered Document No. 36/2024.

Items 6 and 7 remained under attachment. The court therefore proceeded to pass an order specifically concerning Items 6 and 7.

7. FINAL DECISION

The application was allowed.

The attachment over the petition-mentioned properties, specifically Items 6 and 7, made through registered Document No. 8/2012 on 23 July 2012 pursuant to the order in I.A. No. 419/2012 in O.S. No. 116/2012, was ordered to be raised/removed.

The Registry was directed to communicate the removal of attachment concerning Items 6 and 7 to the concerned Sub-Registrar office for making the necessary entries in the encumbrance records.

The court ordered: No cost.

8. STATUS OF PROPERTY ITEMS

Property Items	Status recorded in the order
Items 1 to 5	Already removed from attachment on 21 September 2024 through registered Document No. 36/2024.
Items 6 and 7	Still under attachment when the application was considered; the court ordered removal of the attachment.

9. IMPORTANT DATES

Date	Event
26.03.2009	Sale deed date shown for Ex.P1.
2012	Original suit and attachment proceedings.
23.07.2012	Attachment referred to in the order as registered under Document No. 8/2012.
28.06.2019	Death Certificate of Kannan (Ex.P7).
13.11.2019	Legal Heir Certificate of Kannan (Ex.P8).
04.04.2024	Petitioners stated they discovered the attachment while checking online encumbrance records.
21.09.2024	Items 1–5 recorded as removed from attachment.
20.08.2025	Ex.P9 Encumbrance Certificate issued for the stated period.
21.01.2026	Final hearing mentioned in the order.
25.03.2026	Order pronounced.

10. IMPORTANT DOCUMENT-SUPPORTED POINTS

1. The proceeding concerns removal of an attachment over properties.
 2. The application was filed under Order XXXVIII Rule 8 of the Code of Civil Procedure.
 3. The petitioners relied on documentary evidence rather than oral evidence.
 4. The respondents were set ex parte.
 5. Ex.P1 was the sale deed relied upon regarding Kannan's acquisition of the properties.
 6. Ex.P7 and Ex.P8 concerned Kannan's death and legal heirs.
 7. Ex.P5 concerned the attachment.
 8. Ex.P9 was used to establish the later status of the attachment.
 9. Items 1–5 had already been removed from attachment before this order.
 10. Items 6–7 remained under attachment and were the subject of the final direction.
 11. The application was allowed.
 12. The Registry was directed to communicate the removal to the concerned Sub-Registrar office.
 13. No cost was ordered.

11. SOURCE REFERENCES

Information	Source Page
Court, case numbers, parties and date	Page 1
Application purpose and petitioners' averments	Pages 2–3
Petitioners' discovery of attachment and determination point	Page 3
Court discussion regarding sale and attachment	Pages 3–4
Status of Items 1–5 and Items 6–7	Pages 4–5
Final order removing attachment over Items 6–7	Page 5
Exhibit list Ex.P1–Ex.P8	Page 6
Ex.P9 and respondents' exhibits	Page 7
Fair Order details	Page 8

12. DOCUMENT-SUPPORTED INCONSISTENCY TO PRESERVE

The uploaded document contains a date inconsistency concerning the sale referred to through Ex.P1.

The exhibit table on page 6 identifies Ex.P1 as a sale deed dated 26.03.2009. The petition averment on page 2 also refers to the sale as occurring on 26.03.2009. However, the court's discussion on page 3 contains a reference to 26.09.2009 while discussing Ex.P1.

This summary does not resolve or correct that discrepancy. The original document should be consulted if the exact sale-deed date is legally important.

13. PLAIN-LANGUAGE SUMMARY

What is this case about?
The petitioners wanted the court to remove an attachment placed on certain properties in an earlier case.

Why did they ask for removal?
They said the properties had already been sold to Kannan before the attachment was made and that the petitioners later became his legal heirs.

What did the court examine?
The court considered the sale deed, pattas, attachment document, encumbrance certificates, death certificate and legal heir certificate produced by the petitioners.

What did the court find?
The court found, based on the documents discussed in the order, that the sale had taken place before the 2012 attachment and that the second respondent did not have rights over the properties at the time of attachment.

What happened to Items 1–5?
The court noted that Items 1–5 had already been removed from attachment in 2024.

What happened to Items 6–7?
The court ordered that the attachment over Items 6 and 7 be removed.

What happens next?
The Registry was directed to inform the concerned Sub-Registrar office so that the necessary encumbrance entries could be made.

Cost?
No cost was ordered.

14. SERVICE 2 OUTPUT STRUCTURE

This document has been summarized strictly as Service 2 — Legal Document Summarization.

The output focuses on: Document Overview → Background/Facts → Point for Determination → Material Documents → Court Discussion → Final Decision → Property Item Status → Important Dates → Important Points → Source References → Plain-Language Summary.

No separate risk assessment, clause extraction workflow, multilingual translation, voice assistant workflow, or general legal advice has been added because those belong to other services in the project.

15. FINAL SERVICE 2 SUMMARY

The Principal District Munsif Court, Ulundurpet, considered I.A. No. 3/2024 seeking removal of an attachment over properties involved in O.S. No. 116/2012. The petitioners relied on documentary evidence concerning the sale of the properties to Kannan, his death and their status as legal heirs, the attachment, pattas and encumbrance records. The court found that the sale preceded the 2012 attachment and that Items 1–5 had already been removed from attachment in 2024. The application was allowed and the attachment over Items 6 and 7 was ordered to be removed. The Registry was directed to inform the concerned Sub-Registrar office for necessary encumbrance entries. No cost was ordered.